

EDMONDS TREE CODE

Plain Language Guide

ECDC Chapter 23.10 – Tree Related Regulations

Introduction

This guide explains when you can and cannot cut trees in Edmonds, Washington. It translates the legal language of ECDC Chapter 23.10 into plain English so property owners, developers, and residents can understand their rights and responsibilities.

Why Does Edmonds Regulate Trees?

Code Citation: ECDC 23.10.000

The City of Edmonds regulates trees because urban forests provide critical public benefits that extend beyond individual property lines. When a tree is removed, the loss affects not just the property owner, but the entire community.

The code explicitly identifies these public interests:

- Climate action: Trees sequester carbon and help meet the city's climate action plan goals
- Stormwater management: Tree canopy reduces runoff and filters water before it enters streams
- Wildlife habitat: Trees provide corridors and habitat for birds and other wildlife
- Neighborhood character: Mature trees define the aesthetic character of Edmonds neighborhoods
- Public health: Trees improve air quality and reduce urban heat island effects
- Property values: Studies consistently show mature trees increase property values citywide

Balancing Competing Interests

The tree code attempts to balance two fundamental tensions:

1. **Public environmental benefits vs. private property rights**
2. **Enabling development vs. preserving urban forest**

Understanding this balancing act is key to understanding why certain activities are regulated while others are exempt. The code is designed to be strictest where the risk of harm is greatest (development activity, critical areas) and most permissive where homeowners are simply managing their established properties.

The City's Stated Goal (ECDC 23.10.000.K)

"Mitigate the environmental and aesthetic consequences of tree removal in land development through on-site and off-site tree replacement to help achieve a goal of no net loss of tree canopy

coverage throughout the city of Edmonds, while providing applicants with optional procedural mechanisms to ensure that the mitigation is proportional to the impact."

Part 1: Key Definitions You Need to Know

Before diving into the rules, you need to understand these critical terms. The code uses specific definitions that determine whether regulations apply to your situation.

What is a "Significant Tree"?

Code Citation: ECDC 23.10.020

A significant tree is any tree that is at least 6 inches in diameter measured at 4.5 feet above the ground (called "DSH" or Diameter at Standard Height).

How to Measure

- Stand at the tree and measure the trunk at 4.5 feet (about chest height) from the ground
- If the tree has multiple trunks at that height, add up the diameters of all branches greater than 6 inches
- If only a stump remains (below 4.5 feet), measure the diameter at the top of the stump

Why 6 Inches?

The 6-inch threshold represents roughly 10-15 years of growth for most species. Trees below this size are considered "establishing" and can be more easily replaced. Trees above this size represent a significant investment of time and provide meaningful environmental benefits. The threshold creates a practical line between routine landscaping (exempt) and removal of established trees (regulated).

What is an "Improved Lot"?

Code Citation: ECDC 23.10.020

An improved lot is a piece of land that has two characteristics:

3. A structure (like a house) is already built on it, AND
4. It cannot be further subdivided under current zoning rules

Why Does Subdividability Matter?

The "cannot be subdivided" requirement is crucial for preventing abuse. Without it, a property owner could remove all trees while claiming homeowner status, then later subdivide and develop the now-treeless property—completely avoiding tree retention requirements. By limiting the exemption to lots at their final development state, the code ensures only genuine end-use homeowners benefit from the exemption, not developers-in-waiting.

Examples:

Scenario	Improved Lot?	Exempt?
Single-family home on standard residential lot	Yes	Yes*
Vacant lot with no structures	No	No

Large lot that could be subdivided into two lots	No	No
Condo or townhouse unit	Depends	Depends

**Except for trees in critical areas or buffers. See Part 3 for details.*

What is a "Hazard Tree"?

Code Citation: ECDC 23.10.020

A hazard tree is a tree that is dead, dying, diseased, damaged, or structurally defective—as determined by a qualified professional (certified arborist).

Why Professional Determination Required?

The code requires a qualified professional to determine hazard status because: (1) Property owners might incorrectly (or conveniently) classify healthy trees as hazardous to justify removal; (2) What looks dangerous to a layperson may actually be stable; (3) What looks fine may have hidden structural defects; (4) An objective third-party assessment protects both public interest and property owners from liability.

What is a "Nuisance Tree"?

Code Citation: ECDC 23.10.020

A nuisance tree is a tree causing significant physical damage to structures or infrastructure, including: sidewalks, curbs, roads, water/sewer/stormwater utilities, driveways, parking lots, building foundations, or roofs.

What Doesn't Count as a Nuisance

Note what's NOT included: dropping leaves, blocking views, producing pollen, shading gardens, or being "messy." The code specifically limits nuisance to physical structural damage. Aesthetic or convenience concerns don't qualify. This prevents the nuisance exception from becoming a loophole that swallows the rule.

Other Important Definitions

Term	What It Means	Code Section
Specimen Tree	A tree of exceptional size, form, or rarity as determined by the city's arborist. These receive highest protection priority.	23.10.020
Protected Tree	A tree identified for retention on an approved plan, planted as replacement, or protected by easement/covenant.	23.10.020
Critical Root Zone	The area around a tree equal to 1 foot radius for every 1 inch of trunk diameter. Example: A 12-inch tree has a 12-foot critical root zone.	23.10.020

Viable Tree	A significant tree in good health, low failure risk, windfirm, and suitable species for its location.	23.10.020
Grove	A group of 3 or more significant trees with overlapping or touching crowns. Groves have ecological value beyond individual trees.	23.10.020
Tree Removal	Not just cutting—includes girdling, topping, poisoning, root damage (>20% loss), or removing >50% of live crown.	23.10.020

Why "Tree Removal" is Broadly Defined

The broad definition of "tree removal" prevents circumvention. Without it, someone could poison a tree, damage 90% of its roots, or top it so severely it dies—then claim they didn't "remove" it. By including actions that effectively kill or destroy a tree, the code closes these loopholes.

Part 2: When Tree Cutting is PROHIBITED

Code Citation: ECDC 23.10.050

The general rule is: *"No person shall remove, excessively prune, or top any significant tree except as provided by this chapter."* (ECDC 23.10.030.A)

Beyond this general prohibition, the code specifically prohibits tree removal in four situations:

Prohibition #1: Protected Trees

Code Citation: ECDC 23.10.050.A

What This Means: Once a tree has been officially designated for protection—whether through an approved development plan, as a replacement tree, or through a recorded easement or covenant—it cannot be removed.

Why Protected Trees Can't Be Removed

Protected tree status typically results from a bargain: a developer was allowed to remove some trees in exchange for permanently protecting others. If protected trees could later be removed, this bargain would be meaningless. The city would have allowed development impacts without receiving the promised environmental mitigation. Protected status also attaches to replacement trees to ensure that mitigation actually occurs—otherwise developers could plant replacements, get their permits approved, then remove the replacements.

Exceptions:

- The tree qualifies as a hazard tree (with professional documentation)
- The tree qualifies as a nuisance tree (with documentation)
- The city approves a modification to the landscape plan

Prohibition #2: Vacant Lots

Code Citation: ECDC 23.10.050.B

What This Means: You cannot remove trees from a vacant lot before you have an approved development project.

Preventing "Preemptive Clearing"

This prohibition exists to prevent gaming the system. Without it, a developer could: (1) Buy a lot with 20 significant trees; (2) Remove all 20 trees before applying for permits; (3) Apply for development on a now-treeless lot; (4) Face zero retention requirements (30% of zero trees = zero). By prohibiting removal until development is approved, the city ensures tree retention requirements are calculated based on what actually existed, not what remains after strategic clearing.

Exceptions:

- Hazard trees (with professional documentation)
- Nuisance trees (with documentation)

Prohibition #3: Demolition Projects

Code Citation: ECDC 23.10.050.C

What This Means: When demolishing a building, you can only remove trees that are "reasonably required" for the demolition work itself—and only with the director's approval. Any trees removed must be replaced.

Why Demolition Isn't a Free Pass

Demolition often precedes redevelopment. Without this restriction, property owners could use demolition permits as a backdoor to clear trees before the replacement project triggers retention requirements. The "reasonably required" standard limits removal to trees genuinely in the way of demolition equipment and activities—not every tree on the lot.

Prohibition #4: Critical Areas and Buffers

Code Citation: ECDC 23.10.050.D

What This Means: Tree removal is prohibited in critical areas, their buffers, and native growth protection easements. Critical areas include wetlands, streams, steep slopes (25%+), fish and wildlife habitat, and geologically hazardous areas.

Why Critical Areas Get Maximum Protection

Critical area protections often derive from state and federal law (Clean Water Act, Endangered Species Act, Growth Management Act), not just local preference. Trees in these areas: (1) Stabilize slopes and prevent landslides; (2) Filter pollutants before they reach waterways; (3) Shade streams to maintain temperatures for salmon; (4) Provide wildlife corridors connecting habitat patches. The harm from removing these trees extends far beyond the property boundary—it affects downstream water quality, neighboring slope stability, and regional ecosystem health. This is why even the broad homeowner exemption doesn't apply in critical areas.

This is the most restrictive category. Even the improved single-family lot exemption does not apply in critical areas.

Part 3: When Tree Cutting IS Allowed

The code creates a hierarchy of permissions, from completely exempt activities to those requiring full development review.

A. Activities That Don't Require a Permit (Exemptions)

Code Citation: ECDC 23.10.040

Exemption #1: Improved Single-Family Lots

Code Citation: ECDC 23.10.040.A

If you own a single-family home on a lot that cannot be subdivided, you can remove trees without a permit.

Understanding the Rationale

This exemption reflects a key policy choice: the tree code primarily targets development activity, not routine homeowner property management. An established homeowner on a lot that can't be subdivided isn't trying to game the development system—they're just managing their property. The city decided that requiring permits for every tree a homeowner wants to remove would be: (1) Administratively burdensome for the city; (2) An unreasonable intrusion on property rights; (3) Unlikely to significantly impact overall canopy goals. The "cannot be subdivided" requirement ensures this exemption only benefits genuine end-use homeowners, not potential developers.

IMPORTANT EXCEPTION: This exemption does NOT apply to:

- Trees in critical areas or their buffers
- Trees on erosion hazard slopes of 25% or greater

Why the 25% Slope Threshold?

The specific carve-out for slopes is based on engineering and geology: Steep slopes ($\geq 25\%$): Trees are critical infrastructure for slope stability. Their roots physically hold soil in place. Removing them can trigger landslides that damage neighboring properties, roads, and utilities—harms that extend beyond the property owner's land. Gentle slopes ($< 25\%$): The erosion and stability risks are manageable through other means, so the city allows homeowner discretion. This threshold reflects where private property decisions start creating public safety risks.

Your Situation	Permit?	Code Ref
Tree in your yard, away from any critical areas	NO	23.10.040.A
Tree in a wetland buffer on your property	YES	23.10.040.A.1
Tree on a steep slope ($\geq 25\%$) on your property	YES	23.10.040.A.1
Tree on a gentle slope ($< 25\%$) on your property	NO	23.10.040.A.1
Tree near a stream or creek on your property	YES	23.10.040.A.1

Exemption #2: Non-Significant Trees

Code Citation: ECDC 23.10.040.B

Trees smaller than 6 inches in diameter (DSH) can be removed without a permit, unless they are protected by some other means (such as a conservation easement or approved landscape plan).

Why Small Trees Are Exempt

Trees under 6 inches diameter are typically young (10-15 years), provide relatively modest environmental benefits, and can be replaced within a reasonable timeframe. Regulating their removal would create significant administrative burden with minimal environmental benefit. However, note the exception: if a small tree was specifically planted as mitigation or is protected by easement, it remains protected regardless of size.

Exemption #3: Public Agency and Utility Work

Code Citation: ECDC 23.10.040.C

The public works department, parks department, fire department, and franchised utilities can remove trees for installation/maintenance of utilities or streets, and emergency response to danger, fire hazards, or service interruptions.

Why Public Agencies Get Different Treatment

Public agencies operate under different constraints and accountability: (1) They're already subject to public oversight and SEPA review for major projects; (2) Emergency response can't wait for permit processing; (3) Utility maintenance serves broad public interest; (4) These agencies have their own professional standards and tree management policies. The notification requirement for franchised utilities ensures the city maintains awareness of tree removal in the public right-of-way.

Exemption #4: City Parks

Code Citation: ECDC 23.10.040.D

The Parks Department can remove and maintain trees within city parks at their discretion.

Exemption #5: Routine Maintenance

Code Citation: ECDC 23.10.040.E

- Pruning (must comply with ANSI A300 standards to maintain tree health)
- Removal of invasive/exotic species
- Managing brush and seedling trees
- Pruning previously-topped trees back to the same point (for safety or tree health only)

Why Maintenance is Exempt

Proper tree maintenance actually supports tree health and longevity—it's consistent with the code's goals, not contrary to them. The ANSI A300 standard requirement ensures that "pruning" can't be used as cover for destructive topping or over-pruning that effectively kills trees. The invasive species exemption recognizes that removing non-native invasives often benefits native trees and overall forest health.

B. Removal Allowed with Documentation (No Permit, But Proof Required)

Code Citation: ECDC 23.10.040.F

Trees that don't qualify for the exemptions above may still be removed with supporting documentation:

Tree Type	Required Documentation	Code Reference
Nuisance Tree	Documentation of the damage caused Record of any tree work attempted to fix the problem OR a qualified professional's statement that no arboricultural practices can safely fix the nuisance	ECDC 23.10.040.F.1
Hazard Tree (Outside Critical Area)	Tree risk assessment by a qualified professional documenting how the tree meets the hazard tree definition	ECDC 23.10.040.F.2
Hazard Tree (In Critical Area)	Must comply with the more stringent requirements of ECDC 23.40.220(C)(8)	ECDC 23.10.040.F.3

Why Documentation Instead of Permits?

For hazard and nuisance trees, the city recognizes that removal may be necessary and time-sensitive. Rather than requiring a permit (which takes time to process), the code allows immediate removal with documentation. This balances: (1) Property owner needs for timely response to genuine problems; (2) City's need to prevent abuse of these exceptions; (3) Practical enforcement—documentation creates a record if questions arise later. The higher standard for critical area hazard trees reflects the greater environmental sensitivity of those locations.

C. Removal Allowed with Development Permit

Code Citation: ECDC 23.10.060

Tree removal is allowed as part of an approved development project for the following activities:

- Short subdivisions
- Subdivisions
- New multifamily development
- New single-family development on a vacant lot
- Demolition and replacement of a single-family house
- Any other tree removal on developed sites not otherwise exempt

Why Development Gets the Most Scrutiny

Development activity is where the greatest tree loss historically occurs and where the code can have the most impact. Unlike individual homeowner decisions (dispersed and relatively small-scale), development projects: (1) Often involve removing multiple significant trees at once; (2) Permanently alter site conditions through grading, construction, and impervious surfaces; (3) Are planned in advance, allowing time for retention planning; (4) Involve applicants seeking city approval anyway, so tree review adds minimal additional burden. This is where the "no net loss" goal is most achievable through retention requirements and replacement ratios.

Part 4: Requirements When Tree Cutting IS Permitted

A. Tree Retention Requirements

Code Citation: ECDC 23.10.060.C

Development Type	Minimum Retention
New single-family, short subdivision, subdivision	30% of significant trees
Multifamily, unit lot subdivision	25% of significant trees

Why 30% and 25%?

These percentages represent a policy judgment about the minimum tree retention needed to maintain meaningful urban forest benefits while allowing economically viable development. The 30% single-family threshold is higher because these developments typically have more flexibility in building placement. The 25% multifamily threshold recognizes that denser development, while removing more trees per acre, also houses more people per acre—a tradeoff the city accepts to accommodate housing needs. Both thresholds are calculated on "developable site" (excluding critical areas), ensuring the math isn't skewed by unbuildable land.

B. Priority System for Retention

Code Citation: ECDC 23.10.060.D

Not all trees are equal under the code. When deciding which trees to retain, the city uses a priority system:

PRIORITY ONE (Highest Protection)

- Specimen trees (exceptional size, form, or rarity)
- Trees forming continuous canopy
- Trees on slopes greater than 15%
- Trees adjacent to critical areas and buffers
- Trees over 60 feet tall OR greater than 18 inches DSH

Why These Trees Get Priority One

Each Priority One category reflects irreplaceability or critical function: Specimen trees took decades or centuries to reach their exceptional status—no amount of replacement planting recreates them in our lifetimes. Continuous canopy provides corridor connectivity for wildlife and amplified environmental benefits. Slope trees provide erosion control that protects both the property and neighbors. Trees near critical areas buffer sensitive ecosystems. Large/tall trees provide disproportionate environmental benefits (a 30-inch tree sequesters far more carbon than three 10-inch trees) and define neighborhood character.

PRIORITY TWO

- Healthy tree groupings with preservable undergrowth
- Trees within required setbacks or around the perimeter
- Screening trees (relief from glare, blight, commercial development)
- Other significant native trees
- Other significant non-native trees

PRIORITY THREE (Lowest)

- Alders and cottonwoods (except near wetlands/creek buffers where they serve important ecological functions)

Why Alders and Cottonwoods Are Lowest Priority

Alders and cottonwoods are fast-growing, relatively short-lived "pioneer" species that colonize disturbed areas. While ecologically valuable in riparian (streamside) settings—hence the exception—they're often problematic in developed areas due to weak wood, aggressive roots, and prolific seeding. The code recognizes that retaining a 100-year-old Douglas fir provides more long-term value than retaining a 30-year-old alder that may only live another 20 years.

C. Tree Replacement Requirements

Code Citation: ECDC 23.10.080

Size of Tree Removed	Replacement Required	Code Reference
6 to 10 inches DSH	1 replacement tree	23.10.080.A.1
10.1 to 14 inches DSH	2 replacement trees	23.10.080.A.2
14.1 to 24 inches DSH	3 replacement trees	23.10.080.A.3
Greater than 24 inches DSH	Fee based on appraisal	23.10.080.E.3

Why Larger Trees Require More Replacement

The replacement ratios reflect that larger trees provide exponentially greater environmental benefits. A 20-inch tree doesn't just provide twice the benefits of a 10-inch tree—it provides many times more canopy coverage, carbon storage, stormwater interception, and habitat value. The escalating ratios attempt to ensure that total environmental function is maintained even when large trees are removed. For trees over 24 inches, even 3:1 replacement may not capture the true value, hence the appraisal requirement.

D. Fee-In-Lieu Option

Code Citation: ECDC 23.10.080.E

If on-site replacement is not feasible (documented with arborist reports), you may pay a fee instead:

Fee Type	Amount
Standard fee per tree not replaced	\$2,500 per tree
Trees greater than 24 inches DSH	Appraised value (trunk formula method)
Maximum total fee	\$4.00 per square foot of lot area

Why Fee-In-Lieu Exists

Some sites genuinely cannot accommodate all required replacement trees due to size constraints, soil conditions, or utility conflicts. The fee-in-lieu option ensures: (1) Developers aren't forced into physically impossible compliance; (2) The city still receives compensation for lost tree canopy; (3) Funds go to the Tree Fund for planting elsewhere in Edmonds. The \$4/sq ft cap prevents fees from becoming so large they block otherwise reasonable development. The 50% retention threshold (which exempts projects from fees) rewards developments that prioritize tree preservation.

E. Individualized Determination Option

Code Citation: ECDC 23.10.080.F

Applicants who believe standard replacement ratios are disproportionate can request an individualized determination based on actual environmental value.

Why This Option Exists

The code acknowledges that one-size-fits-all ratios may sometimes be unfair. A healthy 15-inch native conifer provides far more environmental value than a declining 15-inch invasive tree, but standard ratios treat them identically. The individualized determination allows applicants to demonstrate actual impact using scientific factors (carbon sequestration, air quality, stormwater, shade, biodiversity, erosion control) and propose proportional mitigation. This option adds cost and complexity but ensures the code doesn't impose requirements grossly disproportionate to actual impacts—a legal safeguard against potential takings claims.

Required evaluation factors:

- Carbon sequestration
- Air quality improvement
- Stormwater mitigation
- Shade and temperature regulation
- Biodiversity support
- Erosion control

Part 5: Tree Protection During Construction

Code Citation: ECDC 23.10.070

Why Protection Measures Matter

Retaining a tree on paper means nothing if construction activities kill it. Trees commonly die 2-5 years after construction due to root damage, soil compaction, grade changes, or chemical exposure during building. These protection requirements ensure retained trees actually survive. The preconstruction meeting, fencing, and prohibited activities all target the most common ways trees are inadvertently damaged during development.

A. Preconstruction Meeting

Code Citation: ECDC 23.10.070.A

Before any clearing or grading, you must hold an on-site meeting with city staff. The site must be marked showing:

- The extent of clearing and grading to occur
- Critical areas and buffers delineated with clearing limit fencing
- Trees to be removed (flagged) and trees to be retained (tagged)
- Property lines

B. Protective Barriers

Code Citation: ECDC 23.10.070.C

Requirement	Specifications
Tree Fencing	Minimum 3 feet high, visible, durable construction. Orange polyethylene laminar fencing is acceptable. Must surround the protected area.
Signage	Every 15 feet along fencing: "Tree and Soil Protection Area, Entrance Prohibited" with city code enforcement phone number.
Duration	Must remain in place for entire project until director authorizes removal.

C. Prohibited Activities in Protected Zones

Code Citation: ECDC 23.10.070.B

- Operating or parking equipment (compacts soil, damages roots)
- Placing solvents or chemicals (poisons roots)
- Storing building materials (compacts soil, blocks water/air)
- Stockpiling any materials
- Dumping concrete washout (extremely alkaline, kills roots)
- Attaching any object to protected trees

- Excavation or soil compaction (unless approved by qualified professional)

Part 6: Violations and Penalties

Code Citation: ECDC 23.10.100

Violation Type	Penalty
Illegal removal of trees less than 12 inches diameter	\$1,500 per tree
Illegal removal of trees 12 inches or greater	Appraised value of each tree
Illegal tree topping	Fine + 5-year pruning schedule + possible replacement
Any violation	Potential triple damages under RCW 64.12

Why Penalties Are Significant

Tree code enforcement only works if violations cost more than compliance. The penalty structure is designed so that: (1) Illegally removing trees is more expensive than going through proper channels; (2) Larger/more valuable trees carry higher penalties; (3) The triple damages provision (from state timber trespass law) creates serious financial risk for intentional violations; (4) All penalties fund the Tree Fund, turning violations into resources for citywide tree planting. Without meaningful penalties, the code would be merely advisory.

Part 7: Bonding Requirements

Code Citation: ECDC 23.10.090

Bond Type	Amount	Purpose
Performance Bond	120% of estimated cost	Ensures replacement trees are actually planted
Maintenance Bond	50% of performance bond	5-year bond ensuring trees survive and are maintained

Why Bonding is Required

Bonding ensures that tree replacement actually happens and succeeds. Without bonds: (1) Developers could promise replacement trees, get permits, then never plant them; (2) Trees could be planted but never watered, dying within months; (3) The city would have to chase down non-compliant developers with no financial leverage. The 120% performance bond covers planting plus contingency. The 5-year maintenance bond reflects that newly planted trees need years of care to establish, and many tree deaths occur in years 2-5 after planting.

Quick Reference: Decision Guide

STEP 1: Is the tree less than 6 inches in diameter?

→ YES: Generally exempt. No permit needed (unless otherwise protected).

→ NO: Continue to Step 2.

STEP 2: Is the tree in a critical area, buffer, or native growth protection easement?

→ YES: Removal prohibited unless documented hazard tree under ECDC 23.40.220(C)(8).

→ NO: Continue to Step 3.

STEP 3: Is this an improved single-family lot (existing home, can't be subdivided)?

→ YES: Exempt. No permit needed (unless on steep slope $\geq 25\%$).

→ NO: Continue to Step 4.

STEP 4: Is this a vacant lot with no approved development?

→ YES: Removal prohibited unless hazard/nuisance tree with documentation.

→ NO: Continue to Step 5.

STEP 5: Is this part of an approved development project?

→ YES: Removal allowed subject to retention (25-30%), replacement, and protection requirements.

→ NO: You likely need a Type I tree removal permit. Contact Planning & Development.

Produced by Kameron Eck (February, 2026)

**Not an affiliate of the Edmonds Planning and Development
Department**

This guide is for informational purposes only and does not constitute legal advice. For official interpretations, consult the Edmonds Community Development Code and city staff.

Based on ECDC Chapter 23.10 as amended by Ordinance 4410 (November 2025)